

24TRCV03084 24TRCV03084

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-31

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Case Number: 24TRCV03084 Hearing Date: August 31, 2026 Dept: 5

JIMMY LEE JACKSON JR.

;

Plaintiff,

vs.

FCA US, LLC

;

Defendant.

Case

No.:

24TRCV03084

Hearing

Date:

August

31, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT FCA US, LLC'S MOTION TO COMPEL

PLAINTIFF JIMMY LEE JACKSON JR. TO PROVIDE FURTHER RESPONSES TO DEFENDANT'S
REQUESTS FOR PRODUCTION

(2)

DEFENDANT FCA US, LLC'S MOTION TO COMPEL

PLAINTIFF JIMMY LEE JACKSON JR. TO PROVIDE FURTHER RESPONSES TO DEFENDANT'S
REQUESTS FOR ADMISSION

(3)

DEFENDANT FCA US, LLC'S REQUESTS FOR MONETARY
SANCTIONS

MOVING PARTY: Defendant,
FCA US, LLC

RESPONDING

PARTY: No
opposition.

(1)

Defendant

FCA US, LLC's Motion to Compel Plaintiff Jimmy Lee Jackson Jr. to Provide
Further Responses to Defendant's Requests for Production is DENIED to Code of
Civil Procedure section 2031.310, subdivision (b)(2).

(2)

Defendant

FCA US, LLC's Motion to Compel Plaintiff Jimmy Lee Jackson Jr. to Provide
Further Responses to Defendant's Requests for Admission is DENIED to Code of
Civil Procedure section 2033.290, subdivision (b)(1).

(3)

Defendant

FCA US, LLC's Requests for Monetary Sanctions are DENIED pursuant to Code of

Civil Procedure sections 2031.310, subdivision (b)(2), and 2033.290, subdivision (b)(1).

The Court considers the moving papers filed on June 30, 2026. To date, no opposition brief has been filed.

BACKGROUND

Factual Background

On September 16, 2024, plaintiff Jimmy Lee Jackson Jr. ("Plaintiff") filed the Complaint against defendants FCA US, LLC ("Defendant") and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794, 1795.5); and (5) Fraudulent Inducement – Concealment.

On November 7, 2024, Defendant propounded Requests for Production, Set One, and Requests for Admission, Set One, on Plaintiff. (Declaration of Samantha M. Geraghty re: RPD ("RPD Geraghty Decl."), ¶ 3, Exh. B; Declaration of Samantha M. Geraghty re: RFA ("RFA Geraghty Decl."), ¶ 3, Exh. B.) On December 10, 2024, Plaintiff served responses that were composed entirely of objections. (RPD Geraghty Decl., ¶ 4, Exh. C; RFA Geraghty Decl., ¶ 4, Exh. C.)

On May 5, 2025, Defendant's counsel sent a meet-and-confer letter to address the deficiencies in Plaintiff's responses. (RPD Geraghty Decl., ¶ 5, Exh. D; RFA Geraghty Decl., ¶ 5, Exh. D.) However, Plaintiff failed to respond to this correspondence or to provide any supplemental responses. (RPD Geraghty Decl., ¶¶ 5-6; RFA Geraghty Decl., ¶¶ 5-6.)

On May 26, 2026, the Court signed the Stipulation and Protective Order – Confidential Designation Only.

On July 30, 2026, Plaintiff's counsel filed a motion to be relieved as counsel. On August 20, 2026, Plaintiff's

counsel filed the Ex Parte Application to Advance the Hearing on Motion to Be Relieved as Counsel, or, Alternatively, for an Order Enforcing Motion to Be Relieved as Counsel.

On August 24, 2026, the Court granted the ex parte application, advancing the hearing on the motion to the same day. The Court subsequently granted the motion to be relieved as counsel. Consequently, Plaintiff is now self-represented.

LEGAL STANDARD

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Code of Civil Procedure section 2033.290, subdivision (a), provides

that “[o]n receipt of responses to requests for admission, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete[; and] (2) An objection to a particular request is without merit or too general.”

(Code Civ. Proc., § 2033.290, subd. (a).) “[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission.” (Code Civ. Proc., § 2033.290, subd. (c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2033.290, subd. (b)(1).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).) “Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery. (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery.” (Code Civ. Proc., § 2023.010, subds. (d), (h).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Defendant must meet and confer with Plaintiff before bringing these motions. (Code Civ. Proc., §§ 2031.310, subd. (b)(2), 2033.290, subd. (b)(1).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On November 7, 2024, Defendant propounded Requests for Production, Set One, and Requests for Admission, Set One, on Plaintiff. (RPD Geraghty Decl., ¶ 3, Exh. B; RFA Geraghty Decl., ¶ 3, Exh. B.) On December 10, 2024, Plaintiff served responses that were composed entirely of objections. (RPD Geraghty Decl., ¶ 4, Exh. C; RFA Geraghty Decl., ¶ 4, Exh. C.)

On May 5, 2025, Defendant's counsel sent a meet-and-confer letter to address the deficiencies in Plaintiff's responses. (RPD Geraghty Decl., ¶ 5, Exh. D; RFA Geraghty Decl., ¶ 5, Exh. D.) However, Plaintiff failed to respond to this correspondence or to provide any supplemental responses. (RPD Geraghty Decl., ¶¶ 5-6; RFA Geraghty Decl., ¶¶ 5-6.)

The Court finds that Defendant

did not adequately meet and confer in accordance with Code of Civil Procedure section 2016.040. Defendant's counsel failed to make an effort to meet in person, by telephone, or via video conference to discuss the issues at hand. Instead, Defendant's counsel sent a singular meet-and-confer letter, which the Court observes fails to address the individual requests or to provide a rationale as to why Plaintiff's objections are meritless. (RPD Geraghty Decl., ¶ 5, Exh. D; RFA Geraghty Decl., ¶ 5, Exh. D.) Consequently, the Court does not consider this a sufficient attempt to meet and confer prior to bringing these motions.

Accordingly, the Court DENIES Defendant's motions to compel further responses and the accompanying requests for sanctions.

ORDERS

1) Defendant

FCA US, LLC's Motion to Compel Plaintiff Jimmy Lee Jackson Jr. to Provide Further Responses to Defendant's Requests for Production is DENIED.

2) Defendant

FCA US, LLC's Motion to Compel Plaintiff Jimmy Lee Jackson Jr. to Provide Further Responses to Defendant's Requests for Admission is DENIED.

3) Defendant

FCA US, LLC's Requests for Monetary Sanctions are DENIED.

4) Defendant

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 31, 2026

Tamara
Hall

Judge

of the Superior Court